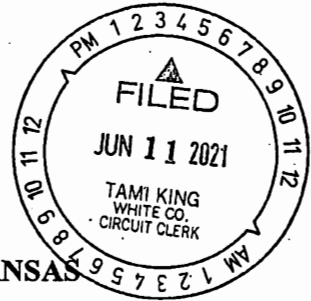




**IN THE CIRCUIT COURT OF WHITE COUNTY, ARKANSAS
CIVIL DIVISION**

ROBERT A. DONATO,

Plaintiff,

v.

NO. 73CV-2021-329

**ENKELKINDER, LLC, PLAZA
TIRE SERVICE, INC.,
TIMOTHY M. CAMPBELL,
RODOLFO REFUGIO JOSE MARIA, and
FLEETWASH, INC.,**

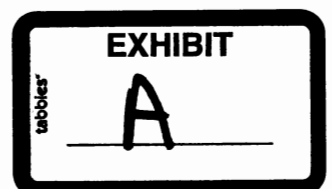
Defendants.

COMPLAINT

COMES NOW the Plaintiff, ROBERT A. DONATO, and files suit against the Defendants, PLAZA TIRE SERVICE, INC., ENKELKINDER, LLC, FLEETWASH, INC., TIMOTHY M. CAMPBELL, and RODOLFO REFUGIO JOSE MARIA, and would state to the Court as follows:

I. PARTIES

1. Plaintiff ROBERT A. DONATO is an adult and resident of Memphis, Shelby County, Tennessee.
2. Defendant PLAZA TIRE SERVICE, INC. ("PLAZA TIRE") is a corporation registered to do business in Missouri, with a primary business address of 2075 Cape Girardeau, Missouri 63703. Defendant PLAZA TIRE can be served with process through its registered agent for service of process, Mark E. Rhodes, at 2075 Cape Girardeau, Missouri 63703.



3. Defendant ENKELKINDER, LLC ("ENKELKINDER") is a corporation registered to do business in Missouri, with a primary business address of 2075 Cape Girardeau, Missouri 63702. Defendant ENKELKINDER can be served with process through its registered agent for service of process, Scott M. Rhodes, at 2075 Cape Girardeau, Missouri 63702.

4. Defendant TIMOTHY M. CAMPBELL ("CAMPBELL") is an adult resident citizen of Missouri and may be served with process at 1305 North Street, Jackson, Missouri 63755. Upon information and belief, Defendant CAMPBELL was an employee of PLAZA TIRE and/or ENKELKINDER at all relevant times herein.

5. Defendant FLEETWASH, INC. ("FLEETWASH") is a New Jersey corporation registered to do business in Tennessee, with a primary business address of Floor 2, 26 Law Drive, Sect E, Fairfield, NJ 07004. Defendant FLEETWASH can be served with process through its registered agent for service of process, Darrell Gibbs, 100 Spence Lane, Nashville, TN 37210.

6. Defendant RODOLFO REFUGIO JOSE MARIA ("JOSE MARIA") is an adult resident citizen of Tennessee and can be served with process at 1005 Hickory Highlands Drive, Antioch, Tennessee 37013.

II. JURISDICTION AND VENUE

7. This Court has jurisdiction and is the proper venue for this action pursuant to Arkansas Code Annotated § 16-60-112 because the vehicle crash that is the subject of this action occurred in White County, Arkansas.

8. This is an action arising in tort and brought on behalf of Plaintiff ROBERT A. DONATO for personal injuries, lost wages, loss of earnings capacity, pain and suffering, medical expenses, loss of the enjoyment of life, and other damages which directly and proximately resulted from a vehicle crash in White County, Arkansas on or about June 15, 2018, caused by Defendants'

negligence.

IV. FACTS

9. On or about June 15, 2018, Plaintiff ROBERT A. DONATO was traveling eastbound on Highway 64, a two-lane highway, in White County, Arkansas in a 2014 White Acura MDX ("Donato vehicle"). Plaintiff ROBERT A. DONATO was riding as a passenger in the Donato vehicle, which was being driven by his wife, Heather Donato.

10. Mrs. Donato was lawfully and carefully operating the Donato vehicle through a construction work zone and, in response to doing so, came to a complete stop in the roadway due to the construction occurring. In the construction work zone, a worker was holding up a "stop sign" to control the flow of travel in response to the ongoing construction.

11 At the same time, and traveling on the same roadway and in the same direction, Defendant JOSE MARIA was operating a Ford F550 with Tennessee tags immediately behind the Donato vehicle on the roadway.

12 At the same time, and traveling on the same roadway and in the same direction, Defendant CAMPBELL was operating a 2016 Box Truck Freightliner with Missouri tags.

13 Defendant CAMPBELL suddenly and without warning, slammed into the rear of Defendant JOSE MARIA's Ford F550 at a high rate of speed, severely and violently striking the Ford F550 so hard that it pushed the Ford F550 forward causing it to violently collide into the rear of the Donato vehicle.

14. At the time of impact, and before the impact, the Donato vehicle was sitting at a complete stop in the construction zone on Highway 64.

15. After the violent impact, the Donato vehicle was forced off of the roadway and traveled down an embankment before it came to rest. The other vehicles left the roadway as well.

16. The vehicle being operated by Defendant CAMPBELL was owned by Defendant PLAZA TIRE and/or ENKELKINDER.

17. At the time of the crash, Defendant CAMPBELL was in the scope and course of his employment with Defendant PLAZA TIRE and/or ENKELKINDER.

18. The vehicle being operated by Defendant JOSE MARIA was owned by Defendant FLEETWASH.

19. At the time of the crash, Defendant JOSE MARIA was in the scope and course of his employment with Defendant FLEETWASH.

V. CAUSES OF ACTION

20. The allegations of Paragraph 1-19 of this Complaint are incorporated herein by reference.

21. Defendants CAMPBELL and JOSE MARIA violated the common laws of the State of Arkansas and committed negligence in the operation of their vehicles in the following manner, to wit: Failure to devote full time and attention to the operation of their vehicles; being distracted while driving; failure to see the vehicles in front of them and avoiding hitting them; failure to maintain proper control; failure to keep a proper lookout; failure to keep their vehicles under control; failure to avoid a collision when they could have done so; failure to exercise reasonable and ordinary care under the circumstances; operating their vehicles in a willful and wanton disregard for the safety of persons and property; failure to operate their vehicles safely through a construction work zone with workers present; failure to use the degree of care that a reasonable and prudent person would have used under the same and similar circumstances and conditions; and failure to exercise due care to avoid colliding with other motor vehicles. Plaintiff further alleges that any one of or combination of

the above acts and omissions of common law negligence by all Defendants, directly and proximately caused the collision and Plaintiff's injuries and damages.

22. Plaintiff further alleges that Defendant violated statutes of the State of Arkansas, which constitutes negligence per se, to wit: including, but not limited to, Arkansas Code Annotated § 27-51-104. Defendants' acts and omissions violated the statutes of the State of Arkansas and were the direct and proximate cause of the crash and the resulting injuries to Plaintiff.

23. Defendants PLAZA TIRE and/or ENKELKINDER are liable for the damages to the Plaintiff because one or both of the entities owned the vehicle being operated by Defendant CAMPBELL and because they negligently entrusted the vehicle to Defendant CAMPBELL. In the alternative, they are liable because Defendant CAMPBELL was on or about their business acting in the scope and course of his employment with them at the time of the crash.

24. Defendant FLEETWASH is liable for the damages to the Plaintiff because it owned the vehicle operated by Defendant JOSE MARIA and because it negligently entrusted the vehicle to Defendant JOSE MARIA. In the alternative, it is liable because Defendant JOSE MARIA was on or about its business acting in the scope and course of his employment with them at the time of the crash.

VI. DAMAGES

25. As a direct and proximate result of the acts and omissions of common law negligence and violations of statutes of the State of Arkansas on the part of the Defendants, the Plaintiff ROBERT A. DONATO was caused to suffer and incur the following damages, to wit:

- (a) severe injuries to his right foot and other injuries to the body;
- (b) great fear, fright, mental distress and shock;
- (c) great physical pain and suffering, both past and future;

- (d) great mental and emotional stress and anguish, both past and future;
- (e) extensive medical treatment;
- (f) large medical expenses, including a planned surgery;
- (g) loss of enjoyment of life;
- (h) aggravation and/or exacerbation of medical conditions;
- (i) permanent disability and/or impairment;
- (j) property damage;
- (k) lost wages and loss of earnings capacity.

26. Plaintiff further alleges that the aforesaid injuries have been extremely painful and will continue and cause anguish in the future.

VII. REMEDY

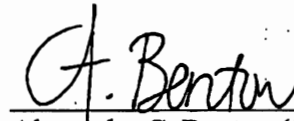
27. WHEREFORE, Plaintiff ROBERT A. DONATO sues the Defendants in the amount of One Million Five Hundred Thousand Dollars (\$1,500,000.00) for actual and compensatory damages, and for such other legal and equitable relief to which he may be entitled under the circumstances. Plaintiff reserves to adjust the *ad damnum* as necessary as additional information becomes available. Plaintiff further requests an award of pre-judgment and post-judgment interest and the costs, including all discretionary costs, incurred in bringing this action. Plaintiff demands a jury trial.

Respectfully submitted,

ROBERT A. DONATO

Plaintiff

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